

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, April 2, 2025. Contents noted. Recommend approval of the negotiated settlement agreement in DADS Nos. 2023-29030 against Police Detective Damien Clarke, Tax Registry No. 933698. The case was conferenced on March 25, 2025, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the dismissal of the charges in return for the recommended negotiated penalty of Departmental Imposed Training.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

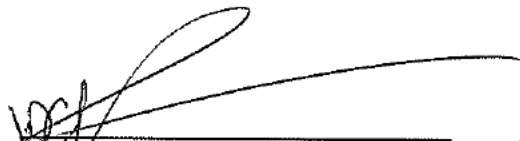
PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031545BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE DTS	SURNAME, CLARKE	FIRST DAMIEN	M.I.	COMMAND 076
SHIELD NO. 3510	TAX REGISTRY NO. 933698	SOCIAL SECURITY NO.	DATE APPOINTED 01/20/2004	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Detective Damien CLARKE, on or about May 13, 2022, at approximately 2215, while assigned to 076 PCT and on duty, in the vicinity of the Northeast corner of Clinton Street and Centre Mall, Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that DET. CLARKE spoke discourteously to § 87(2)(b) without police necessity, when he stated to § 87(2)(b) in sum and substance, "Fuck it."	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.
2. Detective Damien CLARKE, on or about May 13, 2022, at approximately 2215, while assigned to 076 PCT and on duty, in the vicinity of the Northeast corner of Clinton Street and Centre Mall, Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that DET. CLARKE conducted a retaliatory arrest against § 87(2)(b)	DISMISSED	


FIRST DEPUTY COMMISSIONER

7/21/25
DATE

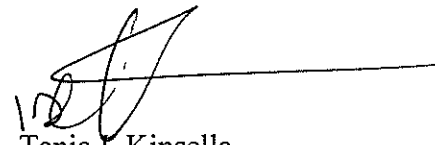
POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

10/21/25
DATE

THIRD ENDORSEMENT

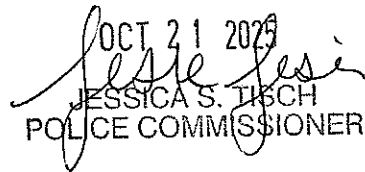
First Deputy Commissioner to Police Commissioner, July 21, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-29030 (PODS Case #C-031545; CCRB Case #202203131) against Detective Damien Clarke, Tax #933698, with the recommendation that the Charges and Specifications against Detective Clarke be dismissed and that Detective Clarke receive Training. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED
OCT 21 2025

JESSICA S. TISCH
POLICE COMMISSIONER